

APPLICATION FOR SEALING UNDER 33 V.S.A. SEC. 5119(G)

STATE OF VERMONT

SUPERIOR COURT, UNIT

CRIMINAL DIVISION

(the county whose court had jurisdiction over the proceeding)

IN RE: Caleb Winslow Tremblay,

APPLICANT.

Docket No.

(the docket number of the proceeding sought to be sealed)

APPLICATION FOR SEALING OF ALL FILES AND RECORDS RELATED TO THE PROCEEDING,
33 V.S.A. Sec. 5119(g)

1. The applicant, Caleb Winslow Tremblay, born 1999-05-02, applies under 33 V.S.A. Sec. 5119(g) for an order sealing all files and records related to the proceeding identified above, and states:

2. The offence in the proceeding was committed before the applicant attained 25 years of age. The applicant's age at the time of the offence, from the record:

.....

3. The applicant's date of final discharge - the day the applicant finished everything the sentence required - shown by the court's record of final discharge:

.....

4. Two years have elapsed since that final discharge, as Sec. 5119(g)(1) requires.

5. The applicant states, after obtaining the applicant's own Vermont Crime Information Center conviction record: the applicant has not been convicted of a listed crime as defined in 13 V.S.A. Sec. 5301, and has not been adjudicated delinquent for such an offence, in the ten years prior to this application, and no proceeding is now pending seeking such a conviction or adjudication. (If any of that is not true of you, do not file this application; Sec. 5119(g)(2) forecloses it.)

6. The applicant states, after obtaining a current balance from the Restitution Unit: no restitution and no surcharges are owed. Sec. 5119(m) bars sealing while either is outstanding. (If anything is owed, do not file until it is resolved.)

7. The applicant's own account of rehabilitation since final discharge, in the applicant's own words - Sec. 5119(g)(3) requires the Court to find that rehabilitation has been attained to the satisfaction of the Court, that burden is the applicant's, and NOTHING ON THESE LINES IS WRITTEN FOR THE APPLICANT (the prompts page of this packet may help you decide what to say):

.....

.....

.....
.....

8. The applicant therefore requests that, after the notice to all parties of record and the hearing that Sec. 5119(g) requires, the Court order the sealing of all files and records related to the proceeding.

DATE SIGNATURE OF APPLICANT

(The applicant signs and dates this application personally. Nothing on this page is signed or dated for the applicant. No notarization is required by Sec. 5119(g).)

PRINTED NAME: Caleb Winslow Tremblay

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TELEPHONE: 802-555-0157

EMAIL: caleb.tremblay@example.org

Route:

obligation:track-pathway:VT:vt_seal_under_25:offense-before-age-25-sealing-under-33-v-s-a-5119-g

YOUR REHABILITATION ACCOUNT - PROMPTS, NOT WORDS

Prepared for: Caleb Winslow Tremblay

Section 5119(g)(3) makes rehabilitation the Court's own finding, to the Court's own satisfaction, and the burden of showing it is yours. This page prompts; it never writes. Nothing here is an argument made for you, no words are supplied, and nothing you gather is received, inspected, reviewed or vouched for.

THINGS COURTS COMMONLY HEAR ABOUT - say what is true of you, in your own words, on the application's rehabilitation lines:

- work: where you have worked since discharge, and for how long;
- study: schooling, training or credentials since discharge;
- treatment: programmes you completed, where treatment was part of your path;
- family and community: responsibilities you carry, people who count on you, service you give.

MATERIAL SOME APPLICANTS BRING. The statute requires no documents for this showing. Some applicants choose to bring letters from employers, educators, treatment providers or community references. Whether to bring any is your decision; gather whatever supports your own account, from your own people.

IF THE SHOWING BECOMES CONTESTED. The Court must hold a hearing, and if the State contests your rehabilitation, arguing it is individualized advocacy rather than form completion. That is a printed stop condition of this packet: take the application and your account to a lawyer or a legal-aid office before the hearing.

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THE HEARING, THE NOTICE, AND WHAT HAPPENS AFTER FILING

This packet is prepared for sealing the record of a Vermont offence you committed before you turned 25, under 33 V.S.A. Sec. 5119(g).

Prepared for: Caleb Winslow Tremblay

THIS ROUTE IS UNLIKE VERMONT'S CHAPTER 230 PETITIONS, and the differences are the statute's own:

- it is an APPLICATION, filed with the court having jurisdiction over the proceeding - the Criminal Division of the Superior Court in the county that handled the case;
- the court may also act on its own motion, but this packet is the participant-initiated route;
- the Court MUST give notice to all parties of record and hold a HEARING before it may order sealing. Expect the prosecuting office to receive notice and to be heard, and expect to attend;
- rehabilitation is an affirmative burden on you, found to the Court's own satisfaction;
- Sec. 5119(k) obliges the court to provide assistance to persons who seek to file an application under the section - ask the clerk's office of the Criminal Division what assistance that court provides.

WHAT YOU DO, IN ORDER

STEP ONE. Ask the clerk's office of the Criminal Division of the Superior Court in the county that handled the case for the record of final discharge. It establishes the date the two-year clock ran from, and nothing can be filed until two years have elapsed.

STEP TWO. Request your own statewide conviction record from the Vermont Crime Information Center, and check the ten-year listed-crime statement against it before you file. VCIC charges a fee for the record; no amount is published here - confirm it with VCIC.

STEP THREE. Ask the Restitution Unit of the Vermont Center for Crime Victim Services for a current balance. Sec. 5119(m) bars sealing while restitution or surcharges are owed; if anything is owed, resolve it before filing.

STEP FOUR. Fill in every dotted blank the participant instructions list, from those records, and write your own rehabilitation account on the application's own lines.

STEP FIVE. Sign and date the application yourself, and file it with the Criminal Division of the Superior Court in the county that handled the case. NO FILING FEE is payable: under 32 V.S.A. Sec. 1431(e) the \$90 fee applies only to a motion to seal a DUI record and expressly does not apply to a motion under 33 V.S.A. Sec. 5119(g).

STEP SIX. The notice to all parties of record is the Court's step under the section, not yours; this packet carries no service page because the statute assigns the notice to the Court. Expect the hearing, and attend it.

AFTER SEALING. Sealed records may still appear in a federal criminal background check: Vermont relief does not reach federal records, even though VCIC notifies the FBI's National Crime Information Center.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:

- the Court sets the hearing and your rehabilitation showing is contested - that is individualized advocacy, not form completion;
- there is any listed-crime conviction or delinquency adjudication in the ten-year lookback, or any such proceeding pending;
- restitution or surcharges remain owed;
- you are unsure whether an offence on your record is a listed crime under 13 V.S.A. Sec. 5301;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

This is a composed application with prompts and instructions. The Vermont Judiciary publishes no form for a Sec. 5119(g) application, which is why the application is composed. It is not legal advice, it is not filed for you, it argues nothing for you, and it does not decide whether the Court will be satisfied of your rehabilitation.

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